

STATE OF NEW YORK

3734--B

Cal. No. 398

2025-2026 Regular Sessions

IN SENATE

January 29, 2025

Introduced by Sens. MAYER, FERNANDEZ, JACKSON, MAY, OBERACKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the public service law, in relation to authorizing the public service commission to establish rules to limit a utility's ability to recover certain operating expenses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 12 of section 66 of the public service law is
2 amended by adding a new paragraph (n) to read as follows:

3 (n) (i) The commission is authorized and directed to, no later than
4 January first, two thousand twenty-seven, establish rules to limit a
5 utility's ability to recover its direct or indirect costs associated
6 with its attendance in, participation in, preparation for, or appeal of
7 any rate proceeding conducted before the commission. Such costs shall
8 include, but need not be limited to, attorneys' fees, fees to engage
9 expert witnesses or consultants, the portion of employee salaries asso-
10 ciated with such attendance, participation, preparation or appeal of a
11 rate proceeding and related costs identified by the commission.

12 (ii) In establishing such rules the commission may consider: (A)
13 setting an overall percentage of the utility's expenses in a rate case
14 that are not recoverable; (B) setting a baseline of the reasonable cost
15 of participation in a rate case; and (C) establishing discovery parame-
16 ters and what information in a proceeding must be disclosed to interven-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 ers and to the commission to reduce time and costs associated with a
2 lengthy discovery process.

3 § 2. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law.